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8 SUPERIOR COURT OF CALIFORNIA
9 COUNTY OF SANTA CLARA
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12 IN THE MATTER OF:

Case No. 26PR201928

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14 RAE J. DUVALL LIVING TRUST
15

ORDER RE MOTION TO TRANSFER
VENUE

16 The above-entitled action came on for hearing before the Honorable Lori E. Pegg on May
17 22, 2026 at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and
18 orders as follows:

19 **INTRODUCTION**

20 On February 13, 2026, Marnie A. Scharmer and Jeanne Scharmer (“Petitioners”), as
21 attorney in fact and co-trustee respectively of the RAE J. DU VALL LIVING TRUST dated
22 March 31, 2009, filed in the instant case a petition to remove co-trustee Joanna Fujimoto and
23 appoint Marnie A. Scharmer as successor co-trustee. On April 1, 2026, Joanne Fujimoto
24 (“Respondent”) filed a motion to change venue to Contra Costa County. Petitioners filed an
25 opposition on May 14, 2026. Respondent filed a reply to Petitioners’ opposition on May 15,
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2026. Petitioners then filed an unauthorized sur-reply on May 18, 2026.¹ Though Petitioners' opposition was untimely, Respondent's motion to change venue is DENIED.

FACTUAL AND PROCEDURAL BACKGROUND

Rae Jeannette DuVall ("Conservatee") is an initial trustee of the Rae J. DuVall Living Trust ("the Trust"). On April 15, 2025, Marnie A. Scharmer ("Scharmer") and Max H. Corrales filed a petition to be appointed as co-conservators of Conservatee. On June 25, 2025, Respondent filed a competing petition seeking to be appointed conservator. Both petitions were filed in Santa Clara Superior Court.² Parties met and conferred on September 19, 2025, after which Respondent submitted a request for dismissal of her petition. On October 7, 2025, Marnie A. Scharmer and Max H. Corrales were appointed as co-conservators of the person and estate of Rae J. DuVall. On December 12, 2025, Respondent filed a petition in Contra Costa Superior Court seeking to remove Jeanne Scharmer as co-trustee.

DISCUSSION

I. Timeliness of the Opposition

Petitioners' Objection to Respondent's Motion to Change Venue was untimely. Code of Civil Procedure section 1005, subdivision (b) requires parties to file opposition papers nine court days before the date of hearing. The date of hearing is May 22, 2026 and Petitioners missed their May 11, 2026, deadline to file opposing papers. Petitioners claim their Objection was timely filed by citing to Probate Code section 1043, subdivision (a). However, the rules of practice applicable to civil actions apply to probate matters unless the Probate Code has an applicable rule. (Prob. Code § 1000, subd. (a).) Petitioners cite to a general section of Probate Code and Probate Code does not have a specific applicable rule here. Thus, the Code of Civil Procedure establishes Petitioners' deadline to file an Objection. Though Petitioners missed the deadline, the

¹ The Code of Civil Procedure contemplates only the filing of moving papers, opposition, and a reply brief and consequently parties have no right to file a sur-reply. (See Code Civ. Proc., § 1005, subd. (b).) Petitioners did not request for leave to file a sur-reply. The court will still consider Petitioners' sur-reply. (See *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 [court has discretion to consider unauthorized briefs].)

² On its own motion, the court takes judicial notice of the fact that the April 15, 2025 Petition for Appointment of Probate Conservator of the Person and Estate filed by Marnie A. Scharmer and Max H. Corrales No. 25PR199794 as well as the June 25, 2025 Petition for Appointment of Probate Conservator of the Person and Estate filed by Joanne Fujimoto No. 25PR199794 were both filed in Santa Clara County Superior Court. (Evid. Code, § 452, subd. (d).)

1 court will consider Petitioner's Objection. (Cal. Rules Ct., rule 3.1300(d) [court has authority to
2 consider untimely papers]; *Bozzi v. Nordstrom, Inc., supra*, 186 Cal.App.4th at p. 765 [same].)

3 **II. Merits of the Motion**

4 Respondent moves to transfer venue pursuant to Code of Civil Procedure section 396,
5 subdivision (b) on the basis that the Trust is being administered in Contra Costa County and that
6 Contra Costa County has already assumed jurisdiction. Respondent further asserts that
7 Petitioners intentionally filed the instant petition in the wrong venue and moves for sanctions.
8 However, Respondent's motion neglects to mention that parties, including Respondent, have
9 already filed in conservatorship proceedings regarding Rae J. DuVall in Santa Clara Superior
10 Court. More saliently, the moving party fails to present any evidence showing that the Trust is
11 being administered in Contra Costa County. Rather, the record indicates that the Trust's sole
12 asset is a property located in Santa Clara County, supporting an inference that the proper venue
13 for hearing matters related to the Trust is in Santa Clara County. In addition, contrary to
14 Respondent's assertions, the Superior Court of Contra Costa County has not yet taken
15 jurisdiction over the matter and has instead continued proceedings pending this court's resolution
16 of the venue issue.

17 Probate Code section 17005 establishes that the proper venue for commencement of a
18 proceeding regarding a living trust is "the county where the principal place of administration of
19 the trust is located." Probate Code section 17002, subdivision (a) defines a trust's principal place
20 of administration as the "usual place where the day-to-day activity of the trust is carried on by
21 the trustee or its representative who is primarily responsible for the administration of the trust."
22 Respondent argues that the Trust's principal place of administration is in Contra Costa County
23 because the day-to-day business of trustee's representative (namely, Respondent's counsel)
24 occurs in Contra Costa County. However, Respondent fails to acknowledge that there is more
25 than one trustee here, and that at the time of the motion, Joanne Fujimoto and Jeanne Scharmer
26 serve as co-trustees.

27 Where the principal place of administration cannot be determined and there is more than
28 one trustee, the principal place of administration is the "residence or usual place of business of

1 any of the cotrustees as agreed upon by them, or if it not, the residence of usual place of business
2 of any of the cotrustees.” (Prob. Code § 17002, subd. (b).) Here, there are two co-trustees
3 (Joanne Fujimoto and Jeanne Scharmer) and the residence or usual place of business of either is
4 an appropriate venue. Among the residences and usual places of businesses of the co-trustees, the
5 strongest (and potentially only) connection between the Trust and Contra Costa County is that
6 Respondent’s attorney is based in Walnut Creek.³ Co-trustees live in Moreno Valley and
7 Manteca, neither of which is in Contra Costa County.⁴ Though Contra Costa County may be the
8 usual place of business for the Respondent’s attorney, Respondent does not point to any actual
9 administration of the Trust that she or her legal representative have performed in Contra Costa
10 County.

11 Petitioners assert that the sole asset in the name of the Trust is a condominium located in
12 San Jose, California.⁵ Petitioners further state that through Rae. J. DuVall’s attorney in fact,
13 Marnie A. Scharmer performs the day-to-day activity of maintaining the property at the location
14 of the property. Because Scharmer is not a co-trustee, her activity cannot be considered trust
15 administration and cannot shed light on where trust administration is taking place. However,
16 Petitioners also present evidence that co-trustee Jeanne Scharmer is involved in trust
17 administration by staying in contact with Marnie A. Scharmer regarding property maintenance
18 and bill payments and has visited the property. The court takes note that Respondent did not
19 refute Petitioners’ assertion that Respondent lives 400 miles away and has never visited the
20 property. In the absence of any actual evidence from Respondent about where trust
21 administration is taking place, it is reasonable to infer that day-to-day activity of the trust is
22 being performed at the location of the sole asset in the Trust in Santa Clara County.

25 ³ The court takes judicial notice of the fact that Walnut Creek, California is located in Contra Costa County on its
26 own motion. (Evid. Code, § 452, subd. (g).)

27 ⁴ The court takes judicial notice of the facts that Moreno Valley and Manteca are not located in Contra Costa County
on its own motion. (Evid. Code, § 452, subd. (g).)

28 ⁵ The court takes judicial notice of the fact that San Jose, California is located in Santa Clara County on its own
motion. (Evid. Code, § 452, subd. (g).)

1 Respondent claims the Superior Court of Contra Costa County has already assumed
2 jurisdiction of the Trust matter. Generally, where two courts have concurrent jurisdiction, the
3 court that heard the matter first has exclusive and continuing jurisdiction. (*See Plant Insulation*
4 *Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 786-787.) Respondent has not shown that
5 Contra Costa County has assumed jurisdiction. Respondent states that the Superior Court of
6 Contra Costa has already issued an Order on Ex Parte Petition to Suspend Co-Trustee and
7 includes the Order as Exhibit A in her Reply. Petitioners contend in their sur-reply that the only
8 hearing on the matter in the Superior Court of Contra Costa County was on May 5, 2026, at
9 which time Respondent's Ex Parte Petition was not yet before the court. Petitioners further argue
10 that at the hearing on May 5, the Superior Court of Contra Costa continued proceedings until
11 July 21 pending this court's resolution of the venue issue. The Superior Court of Contra Costa
12 County does not appear to have assumed jurisdiction because it has not, to date, heard or
13 adjudicated the matter. The Order Respondent points to appears not to be a judgment of the court
14 after hearing arguments, but rather a denial without prejudice of Respondent's Ex Parte Petition
15 in light of ongoing proceedings in this court. Moreover, the rule of exclusive continuing
16 jurisdiction "should not be a rigid inflexible principle." (*Williams v. Superior Court* (2007) 147
17 Cal.App.4th 36, 53.) Venue is proper in Santa Clara County.

18 "[T]he county where the complaint was filed is presumptively the proper county for a
19 trial of the action, and the burden of proving otherwise rests with the party moving to change
20 venue[.]" (*Black Diamond Asphalt, Inc. v. Superior Court* (2003) 109 Cal.App.4th 166, 170.)
21 Respondent has not met this burden. The motion is DENIED.

22 Respondent also moves for sanctions under Code of Civil Procedure section 396,
23 subdivision (b), which provides, "In its discretion, the court may order the payment to the
24 prevailing party of reasonable expenses and attorney's fees incurred in making or resisting the
25 motion to transfer whether or not that party is otherwise entitled to recover his or her costs of
26 action." Here, Respondent did not prevail on her motion. Accordingly, her request for sanctions
27 is DENIED. Petitioners also seek attorney's fees under Code of Civil Procedure section 396,
28 subdivision (b) for costs incurred in opposing Respondent's Motion for Change of Venue. The

1 court notes Petitioners' allegations of bad faith conduct on the part of Respondent's counsel, but
2 the request for attorney's fees is DENIED on the ground that the conduct alleged is largely
3 outside the scope of the motion currently before the court.

4 **CONCLUSION**

5 The motion is DENIED. Respondent's request for sanctions and Petitioners' request for
6 attorney's fees are also DENIED.

7 IT IS SO ORDERED.

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9 Dated: _____, 2026

10 HON. LORI E. PEGG
11 JUDGE OF THE SUPERIOR COURT
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8 SUPERIOR COURT OF CALIFORNIA
9 COUNTY OF SANTA CLARA
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12 IN THE MATTER OF:
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14 THE BISHOP FAMILY REVOCABLE TRUST.
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16 Case No. 16PR178573
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18 ORDER RE APPLICATION

19 FOR RIGHT TO ATTACH

20 ORDER AND FOR ISSUANCE OF WRIT OF

21 ATTACHMENT
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24 The above-entitled action came on for hearing before the Honorable Lori E. Pegg on May 22,
25 2026 at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and
26 orders as follows:
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INTRODUCTION

Petitioners Juliana L. Bishop and Laurie B. Holderman (“Petitioners”), co-trustees of the Bishop Family Revocable Trust, filed a petition for redress of (1) financial elder abuse, (2) relief under Probate Code section 850, (3) breach of contract, (4) unjust enrichment, and (5) conversion. On August 18, 2025, they filed an amended petition alleging only (1) financial elder abuse, (2) relief under Probate Code section 850, (3) breach of contract (“Amended Petition”). Petitioners allege that Respondents Vander Landscape and Reetpaul Singh Vander (“Vander”, collectively “Respondents”) contracted with octogenarian David Bishop (“Bishop”) to perform landscaping on several acre property in Gilroy at a price of \$150,000. But Respondents kept increasing the price and scope of work until the project costs exceeded \$1.5 million. Petitioners also assert that Respondents were unlicensed at the time they entered into the contracts with Bishop and that Respondents caused damage to the property.

Currently before the court is Petitioners’ application for writ of attachment. Respondents have opposed the application.

DISCUSSION

I. Legal Background

“A financial elder abuse claimant may obtain an attachment for potential compensatory damages and an award of attorney fees and costs associated with those damages, but only if the request for it complies with all applicable provisions of the statutory scheme governing pretrial attachments (the Attachment Law) (Code Civ. Proc., § 481.010 et. seq.).” (Royals v. Lu (2022) 81 Cal.App.5th 328, 336.) “The Elder Abuse Act, a remedial scheme designed to protect a vulnerable class of citizens, is generally construed broadly in favor of plaintiffs seeking relief on behalf of elders [citation], while the Attachment Law, which authorizes ‘a harsh remedy [that] ... causes the defendant to lose control of his property before the plaintiff’s claim is adjudicated’ [citation], is generally construed strictly according to the letter of its statutory terms. [Citation.]” (Id. at pp. 344-345.)

“Attachment is an ancillary or provisional remedy to aid in the collection of a money demand by seizure of property in advance of trial and judgment. [Citation.] Under the statutory scheme

governing attachments in California (Code Civ. Proc., §§ 481.010–493.060), denominated by the Legislature as The Attachment Law (Code Civ. Proc., § 482.010), plaintiffs must meet a set of detailed procedural and substantive requirements.” (Royals v. Lu, supra, 81 Cal.App.5th at p. 345, internal quotation marks omitted.) “Procedurally, the plaintiff must meet the burden of showing her claim has probable validity, meaning it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (Code Civ. Proc., § 481.190.) Substantively, the plaintiff must, among other things, present an affidavit or a verified complaint stating that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued together with a statement of the amount to be secured by the attachment. (Id., § 484.020, subds. (a)–(b).) [T]he amount to be secured by an attachment is [t]he amount of the defendant’s indebtedness claimed by the plaintiff (id., § 483.015, subd. (a)) plus allowable costs and attorney fees (id., §§ 483.015, subd. (a), 482.110).” (Royals v. Lu, supra, 81 Cal.App.5th at p. 345, internal quotation marks omitted.)

“As a general matter, the statutory remedy of attachment is limited to an action on a claim or claims for money, each of which is based upon a contract (Code Civ. Proc., § 483.010, subd. (a)), and if the defendant is a natural person, only if the contract claim for which attachment is sought arises out of the conduct by the defendant of a trade, business, or profession (id., subd. (c)). But there are exceptions. Outside the realm of claims for money based on breach of contract, the remedy of pretrial attachment is available as an aid to civil enforcement of certain statutes, one of which is the Elder Abuse Act.” (Royals v. Lu, supra, 81 Cal.App.5th at p. 346, internal quotation marks and fn. omitted.)

“In 2007, the Legislature, acting on reports that the intent to encourage private claims by providing for enhanced remedies ... has largely been unrealized ... , made available the remedy of prejudgment attachment as a way to facilitate quick recovery of losses in financial abuse cases. ([Welf. & Inst. Code,] § 15657.01; Stats. 2007, ch. 45, § 1, p. 191.) [Citation.] The purpose of making pretrial attachment available to financial elder abuse actions claimants was to help claimants preserve the elder or dependent adult’s assets wrongfully held by defendant until judgment is rendered. [Citation.]” (Royals v. Lu, supra, 81 Cal.App.5th at p. 347, internal

quotation marks omitted.) “Section 483.010 of the Code of Civil Procedure . . . is the limiting statute restricting the scope of the Attachment Law to contract claims for damages, absent a statutory exception. Welfare and Institutions Code section 15657.01 is such an exception.” (Id. at p. 348.)

Welfare and Institutions Code section 15657.01 provides, “Notwithstanding Section 483.010 of the Code of Civil Procedure, an attachment may be issued in any action for damages pursuant to Section 15657.5 for financial abuse of an elder or dependent adult, as defined in Section 15610.30. The other provisions of the Code of Civil Procedure not inconsistent with this article shall govern the issuance of an attachment pursuant to this section. In an application for a writ of attachment, the claimant shall refer to this section. An attachment may be issued pursuant to this section whether or not other forms of relief are demanded.”

“At the hearing, the court shall consider the showing made by the parties appearing and shall issue a right to attach order, which shall state the amount to be secured by the attachment determined by the court in accordance with Section 483.015 or 483.020, if it finds all of the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued. (2) The plaintiff has established the probable validity of the claim upon which the attachment is based. (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based. (4) The amount to be secured by the attachment is greater than zero.” (§ 484.090, subd. (a).)

II. Merits of the Application

Petitioners seek a right to attach order under Welfare and Institutions Code section 15657.01 and section 484.010, et seq. based on their financial elder abuse claim. They seek to attach unspecified property of Respondents in the amount of \$1,290,210.00, which includes estimated costs in the amount of \$50,000 and estimated attorney fees in the amount of \$200,000.

Respondents oppose the application arguing, inter alia, that the application is procedurally deficient and that Petitioners cannot prevail on their requisite showing of probable validity.

Respondents maintain that the application is procedurally deficient in that it fails to describe the property Petitioners seek to attach. Section 484.020, subdivision (e) provides, “The application

1 shall be executed under oath and shall include all of the following: . . . A description of the
2 property to be attached under the writ of attachment and a statement that the plaintiff is informed
3 and believes that such property is subject to attachment. Where the defendant is a corporation, a
4 reference to ‘all corporate property which is subject to attachment pursuant to subdivision (a) of
5 Code of Civil Procedure Section 487.010’ satisfies the requirements of this subdivision. Where
6 the defendant is a partnership or other unincorporated association, a reference to ‘all property of
7 the partnership or other unincorporated association which is subject to attachment pursuant to
8 subdivision (b) of Code of Civil Procedure Section 487.010’ satisfies the requirements of this
9 subdivision. Where the defendant is a natural person, the description of the property shall be
10 reasonably adequate to permit the defendant to identify the specific property sought to be
11 attached.” (Code Civ. Proc., § 484.020, subd. (e).)

12 Here, the application indicates that Petitioners are seeking to attach “[p]roperty of a defendant
13 who is a natural person that is subject to attachment under Code of Civil Procedure section
14 487.010[.]” The application then indicates, “SEE ATTACHMENT 9(c) TO APPLICATION
15 FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OR WRIT OF
16 ATTACHMENT [AT-105].” But nothing is attached to the application and no description of the
17 property is provided in any of the supporting materials.

18 “ ‘ . . . [W]here the defendant is an individual, subdivision (e) of Section 484.020 requires the
19 plaintiff to include in his application a description of the property sought to be attached which is
20 reasonably adequate to permit the defendant to identify such property. [para.] The writ issued
21 pursuant to Section 484.090 is limited to the property described in the plaintiff’s application.
22 Thus, the defendant can determine whether he desires to make a claim of exemption as to that
23 property. . . . ’ ” (Bank of America v. Salinas Nissan, Inc. (1989) 207 Cal.App.3d 260, 268,
24 quoting Cal. Law Revision Com. com., Deering’s Ann. Code Civ. Proc., § 484.020 (1988 pocket
25 supp.) p. 57.) Section 484.070 provides a procedure by which the respondent can claim that
26 certain property is exempt from the writ of attachment. But by failing to describe the property
27 Petitioners have deprived Vander of the opportunity to do so.
28

1 Even if the court could overlook the failure to describe the property, the court finds that
2 Petitioners have not established the requisite probable validity of the financial elder abuse claim.
3 “Probable validity means that ‘more likely than not’ the plaintiff will obtain a judgment on that
4 claim. (§ 481.190.)” (Santa Clara Waste Water Co. v. Allied World National Assurance Co.
5 (2017) 18 Cal.App.5th 881, 885.) “In determining the probable validity of a claim where the
6 defendant makes an appearance, the court must consider the relative merits of the positions of the
7 respective parties and make a determination of the probable outcome of the litigation. (Law
8 Revision Com. com. to § 481.190.)” (Loeb & Loeb v. Beverly Glen Music (1985) 166
9 Cal.App.3d 1110, 1120; accord Kemp Bros. Construction, Inc. v. Titan Electric Corp. (2007) 146
10 Cal.App.4th 1474, 1478.)

11 Financial elder abuse is defined by Welfare and Institutions Code section 15610.30, subdivision
12 (a) as follows: [¶] “ ‘Financial abuse’ of an elder or dependent adult occurs when a person or
13 entity does any of the following: [¶] (1) Takes, secretes, appropriates, obtains, or retains real or
14 personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or
15 both. [¶] (2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal
16 property of an elder or dependent adult for a wrongful use or with intent to defraud, or both. [¶]
17 (3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating,
18 obtaining, or retaining, real or personal property of an elder or dependent adult by undue
19 influence, as defined in Section 15610.70.”

20 To state a claim for financial elder abuse, a plaintiff must plead and prove the following: (1) the
21 plaintiff was “elderly” within the meaning of the Elder Abuse Act (Welfare & Institutions Code
22 § 15600, et seq.), i.e., 65 years of age or older; (2) the defendant took or retained the plaintiff’s
23 property with the intent to defraud the plaintiff, for a wrongful use, or by undue influence; (3) the
24 plaintiff was harmed; and (4) the defendant’s conduct was a substantial factor in causing in the
25 plaintiff’s harm. (See CACI No. 3100; Welf. & Inst. Code, § 15610.30.) Bad faith or intent to
26 defraud is no longer required in elder abuse cases, but wrongful use of the property nevertheless
27 must be established. (See Bonfigli v. Strachan (2011) 192 Cal.App.4th 1302, 1315-1316.) “A
28 person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained

1 property for a wrongful use if, among other things, the person or entity takes, secretes,
2 appropriates, obtains, or retains the property and the person or entity knew or should have known
3 that this conduct is likely to be harmful to the elder or dependent adult.” (Welf. & Inst. Code,
4 §15610.30, subd. (b).)

5 Petitioners contend that Respondents convinced Bishop to enter into a series of contracts,
6 incrementally increasing the scope and price of the landscaping contract Bishop had entered into.
7 They further allege that, at the time the contracts were entered into, Vander’s contractor’s license
8 was suspended. They also assert that Respondents contracted to provide services, including
9 installation of solar panels, that fell outside the scope of Vander’s license. Finally, they maintain
10 that Respondents damaged portions of Bishop’s property. Petitioners support their showing with
11 documents from the California Contractors State License Board primarily showing that Vander’s
12 license was suspended from January 6, 2025 to May 20, 2025 when Bishop and Respondents
13 entered into the contracts between January 8, 2025 and March 4, 2025. (See Petitioners’ Exhibits
14 C & J-M.) Petitioners also provide the declaration of Petitioner Juliana Bishop who explains the
15 contracts Bishop and Respondents entered into, including the dates of signing and the amount of
16 the contracts. (Declaration of Juliana Bishop in Support of Application for Right to Attach Order
17 and for Issuance of Writ of Attachment (“Bishop Decl.”), ¶¶ 8-13.) The declaration also indicates
18 that Bishop paid Respondents a total of \$1,040,210 of trust funds but little to no work had been
19 completed at the property. (Id. at ¶¶ 14, 16.) It also alleges that Vander attempted to cultivate
20 favor with Bishop by taking him on outings, including taking him for meals and long drives, and
21 even sought to take him on a multiple-day road trip to Washington. (Id. at ¶ 15.) The declaration
22 further insists that Respondents damaged the property by “driving over septic system lines,
23 destroying existing swales, and leaving work unfinished” and that Respondents took materials,
24 such as lighting and brass plumbing that had been purchased with trust funds. (Id. at ¶¶ 14, 17.)
25 Finally, the declaration indicates that Bishop is 84 years old. (Id. at ¶ 4.)

26 Although Petitioners argue that Respondents took materials and damaged trust property, the
27 amount of the attachment they seek is limited to the \$1,040,210 Respondents were paid under the
28 various contracts, in addition to anticipated attorney fees and costs. Petitioners contend that the

1 taking of the \$1,040,210 amounted to elder abuse because Respondents convinced Bishop to
2 enter into the various contracts when they had no intent of completing the work and were not
3 licensed to complete same. They also argue that Respondents used excessive persuasion to
4 convince Bishop to expand the scope of the project by taking him on outings.

5 Under Business and Professions Code section 7031, subdivision (b), “Except as provided in
6 subdivision (e), a person who utilizes the services of an unlicensed contractor may bring an
7 action in any court of competent jurisdiction in this state to recover all compensation paid to the
8 unlicensed contractor for performance of any act or contract.” Business and Professions Code
9 section 7031, subdivision (e) provides, in pertinent part, that “the court may determine that there
10 has been substantial compliance with licensure requirements under this section if it is shown at
11 an evidentiary hearing that the person who engaged in the business or acted in the capacity of a
12 contractor (1) had been duly licensed as a contractor in this state prior to the performance of the
13 act or contract, (2) acted reasonably and in good faith to maintain proper licensure, and (3) acted
14 promptly and in good faith to remedy the failure to comply with the licensure requirements upon
15 learning of the failure.”

16 Respondents concede that Vander’s license was suspended when the contracts were entered into.
17 But Vander argues that he was unaware of the suspension until January 16, 2025, after the first
18 contract was signed and the work was scheduled to begin. (See Declaration of Reetpaul Singh
19 Vander in Support of Opposition to Petitioners’ Application [], ¶ 14.) Vander also declares that
20 the reason for the suspension was an unpaid liability based on his alleged failure to pay workers
21 who had obtained a judgment against him of which he was unaware.(Id. at ¶ 13.) When he
22 learned of the judgment, he contacted the Department of Industrial Relations to sort things out.
23 (Id. at ¶ 13.) Petitioner’s own materials reflect that Vander’s license was reinstated on May 20,
24 2025 and that Vander had previously been licensed since 2010 with one suspension from
25 September 28, 2021 to November 2, 2021. (See Petitioners’ Exhibit C.) From this, one could
26 conclude that Respondents meet the requirements of substantial compliance despite the license
27 suspension. (C.W. Johnson & Sons, Inc. v. Carpenter (2020) 53 Cal.App.5th 165, 169 [contractor
28 that pleaded it was a duly licensed contractor prior to and during part of the performance of the

1 contract, that it did not know or have reason to know of the defect in licensure, and that upon
2 learning of same, it applied for correct designation and was granted same shortly after sufficient
3 for evidentiary hearing under Bus. & Prof. Code, § 7031, subd. (e)]; Twenty-Nine Palms
4 Enterprises Corp. v. Bardos (2012) 210 Cal.App.4th 1435, 1454 [contractor did not act promptly
5 to reinstate license where license was not active in 2007 when work was performed and did not
6 become active again until 2010].)

7 Petitioners also assert that Respondents contracted to perform work outside the scope of a
8 landscaper's license, such as installation of solar panels, electrical work, and barn siding. But,
9 they provide no evidence or authority establishing that such work may not be performed by a
10 landscaper and, in any event, Respondent have provided an expert declaration indicating that the
11 C-27 license held by Vander would allow him to contract with subcontractors to perform work
12 that he was not licensed to perform himself. (See Declaration of David J. Tognela in Support of
13 Opposition to Petitioners' Application [], ¶¶ 12-13.)

14 As to Petitioners' argument that Respondents overcame Bishop's will to coerce him into making
15 additions to the scope of the project, they assert only that Respondents took Bishop on outings
16 and otherwise conclusorily state that Respondents overcame Bishop's will. (See Bishop Decl., ¶
17 15 [Respondents took Bishop on outings, including meals and long drives and tried to convince
18 Bishop and Juliana Bishop to accompany him to Washington].) This is insufficient.

19 Section 482.040 requires that "[t]he facts stated in each affidavit filed pursuant to this title shall
20 be set forth with particularity." Petitioners also rely on their verified Amended Petition to
21 support their request. But a cause of action for elder abuse is statutory and, therefore, must be
22 pleaded with particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.)
23 "Accordingly, [the] '[u]se of such terminology [as fraudulently and recklessly] cannot cure [the]
24 failure to point out exactly how or in what manner the [respondent] transgressed.' [Citation.]"
25 (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 410.) Petitioners'
26 allegations are similarly conclusory. (See Amended Petition, ¶¶ 42 ["Respondent Vander
27 specifically induced David to make these payments by means of coercion and undue influence,
28 as defined by Welfare and Institutions Code section 15610.70, employing excessive persuasion

1 that overcame David’s free will, resulting in inequity.”], 45 [“Vander repeatedly pressured and
2 coerced David to exponentially expand the landscaping project into a construction project.
3 Petitioners are informed and believe, and thereon allege, Vander pressured David to enter into
4 and execute the Contracts with escalating costs, convincing him to agree to change orders and
5 additional work that dramatically increased the project and exponentially increased pricing over
6 a short period of time.”], 48 [“Petitioners are informed and believe, and
7 thereon allege Vander engaged in excessive persuasion that caused David to enter into and
8 execute the Contracts and to pay Respondents over \$1 million of Trust assets. Petitioners are
9 informed and believe and thereon allege Respondents’ conduct caused David ‘to act or refrain
10 from acting by overcoming his free will and results in inequity.’ ”].) These statements are too
11 conclusory to support a judgment for financial elder abuse. Accordingly, Petitioners have not
12 shown the probable validity of the elder abuse claim.

13 The application for right to attach order is DENIED.

14 CONCLUSION

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16 The application for right to attach order is DENIED.

17 IT IS SO ORDERED.

18
19 Dated: _____, 2026

20 HON. LORI E. PEGG

21 JUDGE OF THE SUPERIOR COURT
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